

STATE OF NEW YORK

7164--A

Cal. No. 1267

2025-2026 Regular Sessions

IN SENATE

April 3, 2025

Introduced by Sen. HINCHEY -- read twice and ordered printed, and when printed to be committed to the Committee on Transportation -- recommended to the Committee on Transportation in accordance with Senate Rule 6, sec. 8 -- reported favorably from said committee, ordered to first report, amended on first report, ordered to a second report and ordered reprinted, retaining its place in the order of second report

AN ACT to amend the vehicle and traffic law, in relation to authorizing certain persons to use an ATV to enter and exit certain lands for ice fishing

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 2403 of the vehicle and traffic law is amended by adding a new subdivision 2-a to read as follows:

2-a. Public lands permitting ice fishing. (a) During times when ice conditions are reasonably safe for the operation of ATVs, as determined by guidelines provided by the department of environmental conservation, and only on lands where snowmobile use is permitted by the department of environmental conservation, including wildlife management areas, state forests, forest preserves, and state parks, a person may operate an ATV to enter and exit such lands when such person is sixty-five years of age or older or such person is severely disabled. Such persons may utilize an ATV as the operator or passenger and shall restrict such usage to traveling to and from ice fishing locations.

(b) For the purposes of this subdivision, "severely disabled" shall mean any person having any one or more of the following impairments, disabilities or conditions which are permanent in nature and have been certified by a physician:

(i) limited or no use of one or both lower limbs;

(ii) neuro-muscular dysfunction which severely limits mobility;

(iii) a physical or mental impairment or condition other than those specified in subparagraphs (i) and (ii) of this paragraph, but which is

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD11283-04-6

1 of such nature as to impose unusual hardship in accessing ice fishing
2 locations and such impairment or condition is certified by a physician,
3 physician assistant or nurse practitioner, to the extent authorized by
4 law and consistent with subdivision three of section six thousand nine
5 hundred two of the education law, duly licensed to practice in this
6 state, or a podiatrist duly licensed to practice podiatry in this state
7 or an optometrist duly licensed to practice optometry in this state, as
8 constituting an equal degree of disability (specifying the particular
9 condition) so as to prevent such person from getting around without
10 great difficulty in accordance with subdivision two of this section;
11 (iv) blindness.

12 § 2. This act shall take effect immediately.